

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2426

By: Fetgatter

AS INTRODUCED

An Act relating to emergency weather response; creating the Oklahoma Emergency Weather Response and Tracking Regulatory Act of 2025; defining terms; stating requirements for Professional Severe Weather Trackers; providing for licensing and renewal fees; directing deposit of certain collected fees; authorizing the Oklahoma Insurance Department punish violations; providing Department with certain discretion for suspension or revocation of licenses; requiring certain return of license; requiring Department promulgate certain rules; providing for the application of certain act; creating the Severe Weather Tracker Licensure Fund; stating type of fund; stating purpose of fund; authorizing expenditures from fund; requiring vehicles have certain identification and equipment; making certain authorizations for Professional Severe Weather Trackers; requiring license be shown upon instruction; requiring Professional Severe Weather Trackers adhere to safety laws; providing for fines and revocation of license; stating fines or revocation shall be in addition to other penalties; providing for codification; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

1 SECTION 1. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 7500 of Title 36, unless there
3 is created a duplication in numbering, reads as follows:

4 This act shall be known and may be cited as the "Oklahoma
5 Emergency Weather Response and Tracking Regulatory Act of 2025".

6 SECTION 2. NEW LAW A new section of law to be codified
7 in the Oklahoma Statutes as Section 7501 of Title 36, unless there
8 is created a duplication in numbering, reads as follows:

9 As used in the Oklahoma Emergency Weather Response and Tracking
10 Regulatory Act of 2025:

11 1. "Professional Severe Weather Tracker" shall mean a licensed
12 individual or company hired or contracted via a qualified media
13 outlet or affiliated with a research program at a qualified
14 institution for higher education;

15 2. "Qualified institution for higher education" shall mean any
16 college or university regulated by the Oklahoma State Regents for
17 Higher Education who offer a course or program in meteorology;

18 3. "Qualified media outlet" shall mean a television station
19 licensed by the Federal Communication Commission for the broadcast
20 or transmission of television programing via broadcast, cable,
21 streaming, or other platforms as recognized by the Federal
22 Communications Commission. Provided, such designation shall not
23 include licensees who are licensed by the Federal Communications
24 Commission for radio or audio broadcasts or transmissions only; and

1 4. "Significant weather event" shall mean:

2 a. a day of slight, enhanced, moderate, or high risk in
3 one or more counties located in the State of Oklahoma
4 by the National Oceanic and Atmospheric
5 Administration's National Weather Service Storm
6 Prediction Center,

7 b. any tornado or severe thunderstorm watch issued by the
8 National Weather Service or the chief meteorologist
9 employed by a qualified media outlet,

10 c. tornado or thunderstorm warning one or more counties
11 located in the State of Oklahoma issued by the
12 National Weather Service or the chief meteorologist
13 employed by a qualified media outlet,

14 d. tornado or thunderstorm warned storms that are
15 anticipated to enter Oklahoma as a high-end dangerous
16 storm from neighboring states within a given time
17 period,

18 e. blizzard warning, ice storm warning, winter weather
19 advisory, winter storm warning, or winter storm watch
20 as declared by the National Weather Service or the
21 chief meteorologist employed by a qualified media
22 outlet,

23 f. red flag fire warning declared by the National Weather
24 Service or the Oklahoma Forestry Services of the

Oklahoma Department of Agriculture, Food, and
Forestry, or

g. flash flood warning or flood warning issued by the
National Weather Service or the chief meteorologist
employed by a qualified media outlet.

SECTION 3. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 7502 of Title 36, unless there
is created a duplication in numbering, reads as follows:

A. Any Professional Severe Weather Tracker employed or
contracted with by any qualified media outlet shall:

1. Cause a copy of their license issued by the Oklahoma
Insurance Department to be kept on file with such outlet;

2. Cause to be displayed, in conformance with the rules of the
Department, on both sides of every primary vehicle utilized by the
professional severe weather tracker, their license number as issued
by the Department and the Federal Communications Commission license
number of the qualified media outlet with whom the tracker maintains
the employment or contractual relationship;

3. Shall have been employed or contracted with a qualified
media outlet no less than five (5) years;

4. Pass a criminal background check;

5. Supply the Department with a letter from the chief
meteorologist of the qualified media outlet stating the belief of
such meteorologist that the prospective Professional Severe Weather

1 Tracker possesses the knowledge, experience, and training to
2 exercise the powers and duties of the license responsibly; and

3 6. Provide a copy of valid and continuing insurance coverage
4 for the vehicle to the Department.

5 B. Any Professional Severe Weather Tracker employed, contracted
6 with, or otherwise affiliated with any qualified institution for
7 higher education shall:

8 1. Cause a copy of their license issued by the Oklahoma
9 Insurance Department to be kept on file with the dean, director, or
10 other designated individual by the institution who shall be
11 responsible for the maintenance of records associated with the
12 institution's meteorology program;

13 2. Cause to be displayed, in conformance with the rules of the
14 Department, on both sides of every primary vehicle utilized by the
15 professional severe weather tracker, the license number as issued by
16 the Department, as well as an identifying number developed by the
17 Department for qualified institutions of higher education.

18 3. Pass a criminal background check;

19 4. Supply the Department with a letter from the dean, director,
20 or other designated individual by the institution who shall be
21 responsible for the maintenance of records associated with the
22 institution's meteorology program stating the belief of such person
23 that the prospective Professional Severe Weather Tracker possesses
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1 the knowledge, experience, and training to exercise the powers and
2 duties of the license responsibly; and

3 5. Provide a copy of valid and continuing insurance coverage
4 for the vehicle to the Department.

5 C. The fees for such licensees shall not exceed Five Hundred
6 Dollars (\$500.00) per year for the initial application and shall
7 expire at the end of the calendar year and may be renewed for Two
8 Hundred Fifty Dollars (\$250.00), the proceeds of which shall be
9 deposited into the Severe Weather Tracker Licensure Fund and shall
10 be utilized by the Department for the administration of the
11 provisions of this act.

12 D. The Department shall issue a letter of reprimand, cancel,
13 suspend, revoke, or refuse to issue or renew the license of an
14 operator when it finds the licensee or applicant has not complied
15 with or has violated any of the provisions of the Oklahoma Emergency
16 Weather Response and Tracking Act of 2025, or any rules adopted by
17 the Department. A suspension or revocation shall be for a period of
18 time deemed appropriate by the Department for the violation. Any
19 canceled, suspended, or revoked license shall be returned to the
20 Department by the licensee, and the licensee shall not be eligible
21 to apply for another license until the period of suspension or
22 revocation has elapsed.

23 E. The Oklahoma Insurance Department shall promulgate rules to
24 effectuate the provisions of this act.

1 F. The provisions of the Oklahoma Administrative Procedures Act
2 shall apply to the implementation and administration of this act.

3 SECTION 4. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 7503 of Title 36, unless there
5 is created a duplication in numbering, reads as follows:

6 There is hereby created in the State Treasury a revolving fund for
7 the Oklahoma Insurance Department to be designated the "Severe
8 Weather Tracker Licensure Fund". The fund shall be a continuing
9 fund, not subject to fiscal year limitations. All monies accruing
10 to the credit of the fund are hereby appropriated and shall be
11 budgeted and expended by the Oklahoma Insurance Department for the
12 restricted purposes of the monies as prescribed by law.

13 Expenditures from the fund shall be made upon warrants issued by the
14 State Treasurer against claims filed as prescribed by law with the
15 Director of the Office of Management and Enterprise Services for
16 approval and payment.

17 SECTION 5. NEW LAW A new section of law to be codified
18 in the Oklahoma Statutes as Section 7504 of Title 36, unless there
19 is created a duplication in numbering, reads as follows:

20 A. Primary vehicles utilized by Professional Severe Weather
21 Trackers shall:

22 1. Display markings clearly identifying such vehicle as being
23 utilized for severe weather tracking and identify the qualified
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1 media outlet or institution for higher education with which the
2 tracker is affiliated; and

3 2. Be authorized to be equipped and use the audible and visual
4 signals provided for in subsection A of Section 12-218 of Title 47
5 of the Oklahoma Statutes.

6 B. Once the conditions of a significant weather event have been
7 met, a Professional Severe Weather Tracker shall be authorized to:

8 1. Activate the audible and visual signals authorized for use
9 in paragraph 2 of subsection A of this section;

10 2. Be considered an emergency vehicle for the purposes of
11 subsections B, C, and E of Section 11-106 of Title 47 of the
12 Oklahoma Statutes; and

13 3. Travel upon roads, highways, and country roads closed by the
14 Department of Transportation, Oklahoma Turnpike Authority, any city
15 or county, or any law enforcement agency by reason of conditions
16 triggered by the significant weather event.

17 C. Upon instruction by any law enforcement officer, a
18 Professional Severe Weather Tracker shall provide a copy of their
19 license issued by the Oklahoma Insurance Department. Failure to
20 comply shall be enforced in accordance with the provisions of
21 Section 6-112 of Title 47 of the Oklahoma Statutes.

22 D. The provisions of this section shall not relieve the
23 Professional Severe Weather Tracker from the duty to drive with due
24 regard for the safety of all persons, nor shall such provisions

1 protect the driver from the consequences of reckless disregard for
2 the safety of others.

3 SECTION 6. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 7505 of Title 36, unless there
5 is created a duplication in numbering, reads as follows:

6 Any Professional Severe Weather Tracker found to be in violation
7 of the provisions of this act shall be subject to a fine, not to
8 exceed Five Hundred Dollars (\$500.00), and revocation of their
9 license by the Oklahoma Insurance Department.

10 Such fine or revocation shall be in addition to any criminal or
11 civil penalties that the Professional Severe Weather Tracker may be
12 subject to for the violation of the laws of the State of Oklahoma.

13 SECTION 7. It being immediately necessary for the preservation
14 of the public peace, health or safety, an emergency is hereby
15 declared to exist, by reason whereof this act shall take effect and
16 be in full force from and after its passage and approval.

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